

STATE OF NEW YORK

1543--A

2025-2026 Regular Sessions

IN SENATE

January 10, 2025

Introduced by Sen. FERNANDEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to expanding the definition of mental health care provider for purposes of certain sex offenses

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Subdivision 13 of section 130.00 of the penal law, as
2 amended by chapter 636 of the laws of 2024, is amended to read as
3 follows:
4 13. "Mental health care provider" shall mean a licensed physician,
5 licensed psychologist, registered professional nurse, licensed clinical
6 social worker, licensed master social worker under the supervision of a
7 physician, psychologist or licensed clinical social worker, licensed
8 mental health counselor [~~or a~~], licensed marriage and family therapist,
9 licensed psychoanalyst, licensed creative arts therapist, or a licensed
10 behavior analyst.
11 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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